

BILL 12, SECTION 6, IN PLAIN LANGUAGE

The AISH Act changes that create ADAP and move people onto it
In force July 2, 2026

Bill 12 is a 132-page omnibus financial law that touches securities, pensions, and other areas.

Section 6 is the only part that deals with AISH and ADAP. This walks through what Section 6 does to the AISH Act in plain words. It is the companion to the regulation breakdown: the Act builds the frame, the regulation (AR 96/2026) fills in the dollar amounts. You will not find the rates in here, they live in the regulation. Sections marked ★ are highlighted in our printed copy. This guide has no legal force; the official statute is the authority.

SECTION 1 (definitions) · Bill 12 p.28 · ★ HIGHLIGHTED

Two new medical tests

Section 6 writes two tests into the Act: a **severe disability that permanently prevents employment**, and a **severe disability that substantially impedes employment**. Both are “as defined in the regulations.” These two phrases are the entire dividing line between the two programs.

SECTION 3 & 3.01 · Bill 12 p.28

The AISH program

Section 3 lets a director provide AISH benefits. Section 3.01 says who gets them: a person with a severe disability that **permanently prevents** employment. This is the program for people who cannot work.

SECTION 3.02 & 3.03 · Bill 12 p.29 · ★ HIGHLIGHTED

The new ADAP program

Section 3.02 creates the Alberta Disability Assistance Program. Section 3.03 says who gets it: a person with a severe disability that **substantially impedes but does not prevent** employment. This is the new, lower-paying stream built around working.

SECTION 3.04 · Bill 12 p.29

Keeping health benefits after ADAP

Lets a person who earned their way off ADAP keep certain health benefits.

SECTION 12.2 · Bill 12 p.41–42

Transition definitions

Defines the terms for the transition sections. A **“formerly eligible client”** is someone who was receiving AISH right before the changeover. The “former Act” and “former regulations” are the old rules as they read the day before July 2.

SECTION 12.4 · Bill 12 p.42

Applications still in progress

If you applied for AISH before the changeover and no decision was made yet, your application is decided under the **old** AISH rules, not the new ones.

SECTION 12.5 · Bill 12 p.43 · ★ HIGHLIGHTED

Appeals already filed are protected

If you were denied AISH and filed an appeal that wasn't decided before the changeover, **your appeal continues under the old Act**. This protects appeals already in the pipeline. It does not create a new way to appeal being moved to ADAP, that is closed by section 12.8 below.

SECTION 12.6 · Bill 12 p.43–44 · ★ HIGHLIGHTED**The transition itself — and the cut**

The heart of it. **12.6(1)**: on July 2, every current AISH recipient is “deemed” to be an ADAP client. **12.6(2)**: the ADAP benefit a person receives “**may be less than**” the AISH benefit they had, the cut, conceded in the statute itself. **12.6(3)**: you are not eligible for AISH again unless you are **determined eligible under the new rules**, which is the reassessment.

SECTION 12.7 · Bill 12 p.44**Existing payment arrangements carry over**

If a third party or a financial administrator was already handling your benefit, that arrangement continues under the new Act.

SECTION 12.8 · Bill 12 p.44 · ★ HIGHLIGHTED**No appeal of the move itself**

In the Act’s own words, a formerly eligible client **has no right of appeal** with respect to their transition under section 12.6 to ADAP. You cannot appeal the fact of being moved. You can still seek a reassessment for AISH (12.6(3)), and ADAP decisions going forward have their own appeal routes, but the move itself is not appealable.

SECTION coming into force · Bill 12 p.—**When it takes effect**

Section 6 takes effect on proclamation, which the government set for **July 2, 2026**. The regulation (AR 96/2026) is tied to the same date through section 6(16). Until July 2, the old AISH Act and its appeal rights still govern.

Read this beside the regulation breakdown. The statute (Bill 12, Section 6) builds the two-program frame and the transition; the regulation (AR 96/2026) sets the rates and the rules. Together they are the whole legal spine, in everyday words.

The Alberta Disability System Breakdown — Advocate

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